

25STCV10023 25STCV10023

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 25STCV10023 Hearing Date: July 22, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

22, 2026 TRIAL DATE: Not set

CASE: Joseph Gross v. Does 1 through 20

CASE NO.: 25STCV10023

MOTION

FOR LIMITED-EXPEDITED DISCOVERY

MOVING PARTY: Plaintiff

Joseph Gross

RESPONDING PARTY: None

I. INTRODUCTION

On April 4, 2025, Plaintiff Joseph

Gross filed this action against Does 1 through 20, alleging fraud, identity theft, and related claims. Plaintiff

alleges Defendants, whose identities are unknown, have made unauthorized transactions with "www.jerky.com" and the Uber rideshare app using the debit card Plaintiff maintains with the Navy Federal Credit Union.

On April 14, 2026, Plaintiff filed a Motion for Limited-Expedited Discovery. Plaintiff moves the court for an order compel non-party deponents Google, LLC ("Google") and Verizon Wireless ("Verizon") to comply with deposition subpoenas for business records meant to ascertain the identity of the individuals fraudulently using Plaintiff's debit card.

The motion is unopposed.

II. LEGAL STANDARD

A party is entitled to obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the action. (Code of Civil Procedure § 2017.010.) A party seeking discovery from a person who is not a party to the action may obtain discovery by oral deposition, written deposition, or deposition subpoena for production of business records. (Code Civ. Proc., § 2020.010.) If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person. (Code Civ. Proc., § 1987.1, subd. (a).) "A deposition subpoena that commands only the production of business records for copying shall designate the business records to be produced either by specifically describing each individual item or by reasonably particularizing each category of item" (Code Civ. Proc., § 2020.410, subd. (a).)

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If the nonparty deponent is a natural person, any person may serve the subpoena by personal delivery of a copy of it to that person. (Code Civ. Proc., § 2020.220, subd. (b)(1).) Personal service of any deposition subpoena is effective to require the personal attendance and

testimony of the nonparty deponent, if the subpoena so specifies.” (Code Civ. Proc., § 2020.220, subd. (c)(1).) 3333

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“A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record.” (Cal. Rules of Court, rule 3.1346.)

III. DISCUSSION

The court lacks jurisdiction to grant the relief Plaintiff seeks. Third-party subpoenas and motions compelling compliance with third-party subpoenas must be personally served on the deponent. (Code Civ. Proc., § 1987; Cal. Rules of Court, rule 3.1346.) Here, Plaintiff served the moving papers by U.S. and electronic mail. (See Proof of Service, filed 4/14/26.) The court has no jurisdiction to grant Plaintiff relief over third parties who have not been served with process.

IV. CONCLUSION

The Motion for Limited-Expedited Discovery is DENIED WITHOUT PREJUDICE.

Plaintiff to give notice.

Dated: July 22, 2026

Brock Hammond

Judge of the Superior Court